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February 19, 2025

SENATE BILL NO. 636

By: Alvord of the Senate

and

West (Kevin) of the House

An Act relating to firearms; prohibiting expenditure of public monies for certain purposes; deeming use of public property, resources, employees, networks, or time as use of public funds; extending prohibitions to certain activity; providing penalty; providing exemption for certain persons; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 593 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. It shall be unlawful for any state entity or political subdivision of this state, or any branch, division, foundation, contractor, or affiliate of a political subdivision of this state, to expend any monies, funds, or resources, directly or indirectly, for:

1. Publicity or propaganda purposes opposing rights as stated
in the Second Amendment to the Constitution of the United States;

1 2. Preparation, distribution, or use of any kit, pamphlet,
2 booklet, publication, electronic communication, radio, television or
3 video presentation, or other audiovisual presentation or material
4 designed to defeat the enactment of:

- 5 a. legislation before any federal or state governmental
6 entity relating to rights as stated in the Second
7 Amendment to the Constitution of the United States, or
- 8 b. any proposed or pending rule, regulation,
9 administrative action, or order issued by any federal
10 or state governmental entity relating to rights as
11 stated in the Second Amendment to the Constitution of
12 the United States; or

13 3. Employment, retention, or use of an executive or legislative
14 lobbyist or legislative liaison, as such terms are defined in the
15 Rules of the Ethics Commission, to support or defeat the enactment,
16 repeal, or amendment of any legislation, rule, regulation,
17 administrative action, or order by any federal or state governmental
18 entity in opposition to rights as stated in the Second Amendment to
19 the Constitution of the United States.

20 B. No individual, state entity, or political subdivision of
21 this state, or any branch, division, foundation, contractor, or
22 affiliate of a political subdivision of this state, shall use any
23 monies, funds, or resources, directly or indirectly, to pay the
24 salary or expenses of any public employee or grant or contract

1 recipient, or agent acting on behalf of such recipient, related to
2 any activity designed to influence the enactment, repeal, or
3 amendment of legislation, an appropriation, a regulation, an
4 administrative action, a rule, or an executive order proposed or
5 pending before any federal or state governmental entity in
6 opposition to rights as stated in the Second Amendment to the
7 Constitution of the United States.

8 C. The use of public property, resources, employees, networks,
9 or time shall be considered to be the use of funds pursuant to the
10 provisions of this section.

11 D. The prohibitions in subsections A and B of this section
12 shall include any activity to advocate or promote any proposed,
13 pending, or future:

14 1. Federal or state tax, fine, or fee increase relating to
15 rights as stated in the Second Amendment to the Constitution of the
16 United States; or

17 2. Requirement or restriction on any legal consumer product,
18 including its sale or marketing, relating to rights as stated in the
19 Second Amendment to the Constitution of the United States.

20 E. Any person violating the provisions of this section shall,
21 upon conviction, be guilty of a misdemeanor punishable by a fine of
22 One Thousand Dollars (\$1,000.00), by imprisonment in the county jail
23 for a term not exceeding one (1) year, or by both such fine and
24 imprisonment.

1 F. The provisions of this section shall not apply to:

2 1. Any person elected to a state, county, or municipal office
3 or any person who is appointed to fill a vacancy in a state, county,
4 or municipal office;

5 2. Any person presenting neutral testimony on behalf of an
6 organization; or

7 3. Any person stating a personal opinion while presenting
8 testimony and the person is not testifying in his or her official
9 capacity.

10 SECTION 2. This act shall become effective November 1, 2025.

11 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
12 February 19, 2025 - DO PASS
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